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Open Enrollment (OE)

For

Orientation and Mobility Services

Open Enrollment No. 3202600155

Date of Release: May 28, 2026

Responses Due: November 24, 2026, by 10:00 a.m. CST

785-17 Blind Teaching and Training Equipment and Supplies

470-79 Vision Impaired Mobility Devices and Equipment

924-86 Vocational Training, All Types, Including Vocational Rehabilitation and Technical Education

952-90 Training and Instruction Services, Clients, Not Staff

Sole Point of Contact:

Meghan Osborn, CTCD

TWC Procurement Portal

Table of Contents

Article I Purpose 9

Article II Scope of Work 10

2.1 Overview of Orientation and Mobility Services 10

2.2 Provider Requirements, Responsibilities, and TWC Policies 11

2.3 VR Standards for Providers (VR-SFP) Manual 11

2.4 Requirements 12

2.5 Service Area 24

2.6 Background Checks 24

2.7 Transportation of VR Customers 25

2.8 Provider's Director 26

2.9 Provider Staff Providing Services to VR Customers 26

Article III General Information 27

3.1 Authority 27

3.2 Schedule of Events 27

3.3 Contract Documents 28

3.4 Attachments and Forms 29

3.5 Sole Point of Contact 34

3.6 Addenda 35

Article IV Application Process 35

4.1 Deadline 35

4.2 General Information 35

4.3 Discrepancies 36

4.4 Submission Method 36

4.5 Required Application Documents 37

4.6 Binding Offer 38

4.7 Franchise Tax – Right to transact business in Texas 39
4.8 Ambiguity, Conflict, or Discrepancy 39
4.9 TWC Rights 39
Article V Application Evaluation 41
5.1 Application Screening 41
5.2 Review of Applications 41
5.3 Public Information Act 42
Article VI Terms and Conditions 45
6.1 Contract Award 45
6.2 Contract Term 46
6.3 Payments 46
6.4 Contract Amendments 46
6.5 No Guarantee of Volume, Usage or Compensation 46
6.6 Governmental Entities 47
6.7 Costs Incurred 47
6.8 Applicant Waiver-Intellectual Property 47
6.9 Required Insurance 48
6.10 FAILURE TO PERFORM 48
6.11 Remedies 49
6.12 Change of Ownership or Financial Condition 49
6.13 Severability 50

Definitions

Table 1: Definitions

Term/Acronym	Definition
ACVREP	Academy for Certification of Vision Rehabilitation and Education Professionals.
Addendum; Addenda; Amendment	A written addition, change, or supplement to this Solicitation that is posted to the ESBD and issued prior to the response due date.
Applicant	An entity or individual who submits a Provider Enrollment Packet in response to this Open Enrollment.
Business Day	The day and hours (Monday through Friday, 7 a.m. to 6:00 p.m. Central Time) at which TWC is open for business. TWC is closed for business on the scheduled holidays indicated by the State Auditor's Office available at https://hr.sao.texas.gov/holidays/. The terms "Working Day" and "Business Day" may be used interchangeably. All uncapitalized references to "day" shall mean calendar day.

Term/Acronym	Definition
Confidential Information	Any communication or record (whether oral, written, electronically stored or transmitted, or in any other form) provided to or made available to Contractor or that Contractor may create, receive, maintain, use, disclose or have access to on behalf of TWC that consists of or includes any or all the following: a. Customer Information; b. Protected Health Information (PHI), in any form including, without limitation, Electronic Protected Health Information or Unsecured Protected Health Information; c. Sensitive Personal Information, as defined by Texas Business and Commerce Code, § 521.002(a)(2); d. Federal Tax Information; e. Personally Identifiable Information (PII) as defined by Texas Business and Commerce Code § 521.002(a)(1); f. Social Security Administration Data, including, without limitation, Medicaid information; g. All privileged work product; all information designated as confidential under the constitution and laws of the State of Texas and of the United States, including the Texas Health and Safety Code and the Texas Public Information Act, Texas Government Code, Chapter 552; h. Personally Identifiable Information defined by 2 CFR 200.1; and i. Information deemed confidential under The Rehabilitation Act of 1973, 29 U.S.C. Chapter 16, as amended, and implementing regulations 34 C.F.R. Parts 361 through 396.

Term/Acronym	Definition
Conflict of Interest	A situation that creates a risk that professional judgment or actions will be unduly influenced by a personal interest or relationship and creates substantial conflicts with the proper discharge of duties required by a contract and the public interest. Each Applicant must comply with the content on Conflict of Interest located in the VR-SFP Chapter 3: Basic Standards.
Contract	The written agreement entered into by TWC and Provider, which will incorporate the contents of this Open Enrollment and the Provider's Application, except as may be provided in the Contract and any amendments thereto.
Contractor (also Provider)	A legal entity or individual who TWC is contracted with to provide goods and/or services for TWC Customers. Contractor can be used interchangeably with Provider, Service Provider, or Vendor.
Contract Term	The definite period of time that the Contract will remain in effect, including all stated renewals and extensions.
Customer	An individual that has met the TWC eligibility criteria and has been approved to receive TWC Vocational Rehabilitation (VR) services.
CTCD	Certified Texas Contract Developer.
CTCM	Certified Texas Contract Manager.
ESBD	The Electronic State Business Daily. An online platform administered by the Statewide Procurement Division (SPD) of the Comptroller of Public Accounts (CPA). The ESBD may be accessed as http://www.txsmartbuy.com/esbd.

Term/Acronym	Definition
Fiscal Year (FY)	Texas State Fiscal Year, September 1 through August 31.
ILS-OIB	Independent Living Services for Older Individuals Who Are Blind.
OE	Open Enrollment
Older Individuals who are Blind (OIB)	An individual age 55 or older whose significant visual impairment makes competitive employment extremely difficult to attain but for whom independent living goals are feasible.
PCS or Procurement and Contract Services	A department within TWC's Business Operations division.
PS	Procurement Services, a section within TWC.
Provider	The Applicant(s) with whom TWC executes a Contract to provide the goods and/or services that this Solicitation requires.
SME	Subject Matter Expert
Solicitation	This Open Enrollment, including all exhibits, attachments, forms, and Addenda, if any.
State	The State of Texas and its instrumentalities, including TWC, its officers, employees, or authorized agents, and any other state agencies.

Term/Acronym	Definition
Subcontractor	Any entity(ies) or person(s) providing goods or services under the Contract on Provider's behalf, whether or not the entity(ies) or person(s) has/have a written agreement with the Provider. The term does not include a state agency; rather a subcontractor may be an officer or employee of a state agency when the officer or employee contracts with a vendor in a private capacity.
TWC	Texas Workforce Commission.
Vocational Rehabilitation Division (VRD)	The TWC Vocational Rehabilitation Division (VRD) administers the Vocational Rehabilitation Services Program, which is a joint state and federally funded program to assess, plan, develop, and provide VR services for eligible individuals with disabilities, consistent with their unique strengths, resources, priorities, concerns, abilities, capabilities, interests, and informed choice so that these individuals can prepare for and engage in competitive integrated employment and achieve economic self-sufficiency. In accordance with the Rehabilitation Act of 1973, as amended by Title IV of WIOA (29 U.S.C. § 720 et seq.). VRD is the single designated state unit for the VR program.
Vocational Rehabilitation Standards for Providers Manual (VRSFP)	The VR Standards for Providers (VR-SFP) Manual focuses on the business practices, processes, and policies that must be followed for TWC and the Contractor to comply with federal and state laws and TWC rules and requirements. The VR-SFP Manual ensures TWC-VR Customers receive quality services. Each Contractor should review the VR-SFP Manual and forms for changes every thirty (30) calendar days. Each Contractor is expected to be familiar with and comply with the most recently published VR-SFP Manual and use the most recently published forms applicable to their Contract.

Term/Acronym	Definition
VPTS	Vendor Performance Tracking System, as described under Texas Government Code § 2262.055 and 34 TAC § 20.115. Reporting requirements and vendor performance factors considered in VPTS are described in Texas Government Code § 2155.089 and 34 TAC § 20.509. The VPTS is available at: https://www.txsmartbuy.gov/vpts.

ARTICLE I PURPOSE

The Texas Workforce Commission (TWC) is seeking Applications from qualified Service Providers to deliver services to be provided to Vocational Rehabilitation (VR) Customers served by TWC's VR division. This is an Open Enrollment (OE) opportunity solicited through an Open Enrollment.

Opportunities are available to provide Orientation and Mobility Services in all areas of the state. Applicants must meet all requirements and specifications outlined herein to be eligible to provide services.

The TWC Procurement Services (PS) section will administer the procurement process for this Open Enrollment, which includes Open Enrollment publication, handling of communications from Applicants, as well as managing the receipt of Applications for review.

Information regarding TWC and its programs is available online and can be currently accessed at www.twc.texas.gov.

ARTICLE II SCOPE OF WORK

2.1 OVERVIEW OF ORIENTATION AND MOBILITY SERVICES

TWC's mission is to promote and support a workforce system that creates value and offers employers, families, individuals and communities the opportunity to achieve and sustain economic prosperity.

Orientation and Mobility (O&M) services prepare blind and visually impaired customers to travel independently with competence and confidence.

This Open Enrollment is for O&M Services. O&M services prepare blind and visually impaired customers to travel independently with competence and confidence.

O&M specialists offer complex, interrelated services designed to develop independent travel skills in individuals who are blind or visually impaired. O&M services begin with an assessment and can include training held in environments frequently visited by customers.

Orientation is the process of using the available senses to establish one's position and relationship within the environment.

Mobility is the ability to travel in the environment with the help of an established tool (including white canes, dog guides, and electronic travel aids).

O&M assessments and training can be provided in locations within the customer's home or community. O&M assessments and training are provided in person and cannot be provided remotely.

Examples of training locations include:

1. the customer's home (indoor and outdoor);
2. public areas, such as a bank, church, or doctor's office;
3. commercial areas, such as a grocery store or mall;

4. transit systems, such as public transportation, paratransit, and taxis;
5. rural areas;
6. residential areas (with light traffic and stop signs);
7. small business areas (with heavier traffic and simple traffic lights);
8. downtown areas (with heavy traffic and complex traffic lights); and
9. commercial modes of travel, such as trains and planes.

All fees for services described in this chapter can be found in VR-SFP 5.5 Orientation and Mobility Service Fees.

2.2 PROVIDER REQUIREMENTS, RESPONSIBILITIES, AND TWC POLICIES

Providers must be knowledgeable about their responsibilities, the service requirements, and TWC policies applicable to them.

2.3 VR STANDARDS FOR PROVIDERS (VR-SFP) MANUAL

The VR Standards for Providers (VR-SFP) Manual focuses on the business practices, processes, and policies that must be followed for TWC and the Provider to comply with federal and state laws and TWC rules and requirements. Providers must adhere to the current VR-SFP Manual when providing services to VR Customers.

An Applicant applying for a contract must comply with the following VR-SFP Manual chapters in addition to the Solicitation.

- Chapter 1: Introduction to Vocational Rehabilitation
- Chapter 2: Obtaining a Contract for Goods and Services
- Chapter 3: Basic Standards

Notice of upcoming changes to the VR-SFP Manual are published on the

Vocational Rehabilitation Providers' Resources page at least thirty (30) calendar days in advance of the effective date of the changes. Each Provider is contractually responsible for maintaining compliance with the most current VR-SFP Manual.

A revision list that summarizes any formal changes to the VR-SFP Manual can be found on the Vocational Rehabilitation Standards for Providers Revision Log.

TWC GovDelivery notifies Providers every time revisions are posted to the VR-SFP Manual and other important information. All Providers should subscribe to TWC GovDelivery list to gain these notifications. Visit the TWC GovDelivery website, enter an email address, and select the topic "Vocational Rehabilitation Contractors and Providers News" to subscribe.

For questions about the content in the VR-SFP email, contact vr.standards@twc.texas.gov.

2.4 REQUIREMENTS

2.4.1 Qualifications and Training

Before services are provided, the service provider director must:

- approve VR3455, Provider Staff Information Form, which is completed by each of the provider's staff members, such as specialists and interns (the form must include the staff members' qualifications as stated in **Section 2.4.2 Orientation and Mobility Specialist** and provide evidence that the staff member meets the qualifications); and
- submit the approved form to the provider's assigned contract manager and assigned regional program specialist.

2.4.2 Orientation and Mobility Specialist

The O&M specialist must meet one of the following criteria:

- Be certified by the Academy for Certification of Vision Rehabilitation and Education Professionals (ACVREP) or the National Blindness Professional Certification Board (NBPCB);
- Have a degree in O&M from an accredited college or university with an established O&M training curriculum and become certified by ACVREP or NBPCB within one (1) year of being hired by a service provider;
- Have at least two (2) years of full-time experience teaching O&M skills for an entity that VR recognizes, such as a rehabilitation center, a Veterans Administration hospital, or an educational system, and:
    - provide three (3) professional references indicating the candidate's ability to teach O&M skills to blind or visually impaired individuals; and
    - be certified by ACVREP or NBPCB within one year of being hired by the service provider.

2.4.2.1 REQUIRED TEXAS CONFIDENCE BUILDERS TRAINING FOR O&M SPECIALISTS

In addition to meeting the requirements for education, training, and experience described in **Section 2.4.2 Orientation and Mobility Specialist**, all prospective O&M providers must successfully complete the Orientation and Mobility Texas Confidence Builders training before becoming providers.

Texas Confidence Builders training is a two- to three-day training program offered in Austin. While the training is provided free of cost, providers must pay all costs associated with attending the training program. Contact the state office O&M program specialist to schedule the training.

2.4.3 Annual Staff Training

To ensure that O&M specialists remain competent in their skills, VR

recommends that each O&M trainer complete a minimum of twenty (20) hours of blindfold travel per fiscal year, so that the O&M trainer:

- practices his or her own independent travel skills;
- provides effective role modeling; and
- promotes independent travel as a confidence-building tool for customers.

Examples of recommended activities for blindfold travel include:

- traveling around a city block;
- traveling on an L-shaped sidewalk route;
- traveling to the grocery store; and
- exploring a new neighborhood.

VR also recommends O&M specialists:

- create a report like the Sample Orientation and Mobility Provider's Independent Travel Activity Report; and
- send a copy of their travel activity report to the assigned regional program specialist for VR.

2.4.4 Orientation and Mobility Interns

O&M service providers are ultimately responsible for the monitoring, supervision, and follow-up of the O&M intern during the internship.

O&M service providers using interns to work with VR customers must:

- have an O&M specialist with ACVREP or NBPCB certification observe each intern for a minimum of twelve (12) lessons during the internship and document the observations on VR2922, Orientation and Mobility Weekly Internship Observation;
- submit VR2922 to the regional program support specialist each month

during the internship; and

- submit VR2923, Orientation and Mobility Internship Performance Evaluation to the designated regional program specialist within thirty-five (35) days of completion of the internship.

The O&M intern must:

- attend Texas Confidence Builders training in Austin or attend another approved training with the VR in-house O&M designee before working with blind and visually impaired customers;
- be supervised by an approved VR-certified O&M provider for the duration of the internship;
- be observed by a VR-certified O&M provider for a minimum of twelve (12) lessons during the internship; and
- sign and then forward reports to the supervising O&M provider that maintains either the ACVREP or NBPCB for his or her approval.

Note: VR does not pay for any expenses incurred by the intern during the internship.

2.4.5 Orientation and Mobility Service Assessment

The following sections describe the O&M Service assessment and expectations.

2.4.5.1 ORIENTATION AND MOBILITY ASSESSMENT SERVICE DESCRIPTION

The assessment includes an evaluation of the customer's O&M skills in multiple situations in person and cannot be conducted remotely.

Assessments may be conducted using the customer's functional vision. Functional vision refers to the way in which an individual uses whatever vision he or she has in a given travel situation. Assessments provide an opportunity for customers to recognize that their vision might not meet all their travel

needs.

Locations for assessments include a combination of:

1. the customer's home and immediate surrounding area;
2. public areas, such as a church, park, or college campus;
3. commercial areas, such as a bank, store, or mall;
4. transit systems, such as paratransit or taxis (if available);
5. local buses and similar public transportation (if available);
6. rural areas (if applicable);
7. residential areas (those with light vehicle and foot traffic and some stop signs);
8. small business areas (those with heavier traffic and simple traffic lights);
9. downtown areas (those with heavy vehicle and foot traffic and complex traffic lights);
10. commercial transportation systems, such as buses, trains, and airplanes (if applicable); and
11. travel using low-vision devices (if applicable).

For Independent Living Services for Older Individuals Who Are Blind (OIB) customers, the OIB worker authorizes a maximum of three (3) hours for the initial assessment to be completed.

The O&M specialist must include in the initial assessment observations of and recommendations on white cane skills. The recommended number of hours allowed for training must include the customer's travel needs, regardless of the mobility tool (dog or white cane). Training with a guide dog must not exceed more than four hours and must be preapproved in writing by the VR counselor

or OIB worker.

Recommendations for training must be:

- documented under the summary section of VR2894, Orientation and Mobility Assessment; and
- submitted to the VR counselor or OIB worker.

Following the assessment, it is recommended that the O&M specialist reviews the results with the customer and answers any questions that the customer might have about the recommended training.

2.4.5.2 PROCESS AND PROCEDURE

The VR counselor or OIB worker completes the VR2897, Orientation and Mobility Referral, leaving no blanks and putting NA (not applicable) as needed. After completion of the form, the VR counselor or OIB worker sends it to the provider that has been chosen by the customer. Included with the referral is information that helps the O&M specialist assess and recommend training for the customer.

The VR counselor or OIB worker is responsible for authorizing an O&M assessment and approving services, including approving the documentation for payment when invoiced.

Based on the results of the O&M assessment, the VR counselor or OIB worker determines the training goal and hours to be funded by VR or OIB. No assessments or training sessions are completed before a service authorization is issued.

After submitting VR2894, Orientation and Mobility Assessment, the O&M specialist must contact the customer's VR counselor or OIB worker to discuss the initial assessment. This discussion must be documented and filed in the O&M provider's customer file.

The discussion includes:

- the O&M specialist's recommendations for training (if any), including the:
    - O&M skills needed;
    - proposed completion date; and
    - number of training hours authorized by the customer's VR counselor or OIB worker;
- anticipated delays in services, if any;
- special considerations or extended direct training dates, if any;
- the customer's readiness to begin nonvisual O&M skills training; and
- the customer's understanding of O&M skills training and its potential benefits.

2.4.5.3 OUTCOMES REQUIRED FOR PAYMENT

The O&M provider documents in descriptive terms the information required on the VR2894, Orientation and Mobility Assessment, including:

- the O&M specialist's observations and comments;
- recommendations for O&M skills training;
- the number of training hours recommended for each area of training and the total number of training hours recommended;
- the anticipated beginning and ending dates for the recommended training;
- the customer's response to the training recommendations;
- the height of the white cane that is most appropriate for the customer (using the measurement between the customer's chin and nose when

the customer is standing up); and

- a description of all travel aids that the customer uses or would benefit from using.

2.4.6 Orientation and Mobility Training

The following sections describe how O&M is provided to the client after an evaluation.

2.4.6.1 ORIENTATION AND MOBILITY TRAINING SERVICE DESCRIPTION

O&M training prepares an individual who is blind or visually impaired to travel independently with competence and confidence.

Based on the results of the evaluation, the VR counselor or OIB worker determines the training goal and hours to be funded by VR or OIB. No training is provided before a service authorization is issued. Training is provided in person and cannot be conducted remotely.

All O&M training services for VR customers are conducted using:

- nonvisual (blindfold) techniques; and
- a rigid (non-folding) white cane with a metal tip.

All O&M training services for OIB customers are conducted using:

- either nonvisual (blindfold) or visual training, whichever better addresses the customer's needs and circumstances; and
- a rigid (non-folding) white cane with a metal tip, unless an alternate cane is needed.

The O&M specialist must discuss the benefits of nonvisual and visual training with each customer. Role modeling and peer support for nonvisual training are encouraged.

The O&M specialist may not conduct more than six (6) hours or fewer than two (2) hours of O&M instruction per day. The O&M specialist cannot conduct more than six (6) hours of training in a day, even if multiple customers are served during that day. Billing for O&M services must not exceed six (6) hours per day. Lessons are at least two (2) hours long unless approved by an obtained VR3472, Contracted Service Modification Request for Blind and Visually Impaired Services.

For Independent Living Services for Older Individuals Who Are Blind (ILS-OIB) customers, the length of the training lesson will be determined by the customer's health, stamina, and ability to participate.

2.4.6.2 PROCESS AND PROCEDURE

The following details the specific processes and procedures involved in O&M Training services.

2.4.6.2.1 GENERAL

The VR counselor or OIB worker is responsible for authorizing O&M training for the customer and approving services, including approving the documentation for payment when invoiced.

The provider must not bill for any services other than Orientation and Mobility training, or Orientation and Mobility group training.

Based on the results of the assessment, the VR counselor or OIB worker determines the training goals and hours to be funded by VR or OIB. No training is provided before a service authorization is issued.

O&M training must not exceed the total number of training hours and type of training authorized by the customer's VR counselor or OIB worker on the service authorization.

Consistent and frequent scheduling is recommended to maximize learning.

One two-hour lesson a week is the minimum training allowable. Daily O&M training is considered best practice.

Note: For OIB customers, if less than two (2) hours of training were provided in one (1) session, the trainer must document on the VR2896 in the Brief Description of how the training lesson affected the customer's health, stamina, and ability to participate.

Time spent transporting customers does not count toward training time. O&M specialists are not reimbursed for time spent in the car, even when a customer is present.

The O&M specialist must notify the customer's VR counselor or OIB worker within 24 hours about all:

- missed, cancelled, or rescheduled appointments;
- issues, concerns, or circumstances that might impact or delay planned services; and
- incidents or injuries that occur during training that might negatively impact the customer's health and safety.

If services are interrupted and training cannot be completed as planned, or if services are postponed indefinitely because of unexpected circumstances, the O&M provider must notify the customer's VR counselor or OIB worker within twenty-four (24) hours.

The O&M specialist must submit required forms and complete the required training under the specifications of the referral and the service authorization.

2.4.6.2.2 GROUP TRAINING

VR and OIB encourages O&M specialists to coordinate group training sessions (that is, sessions of up to three (3) customers) when it will benefit the instruction process and better meet the needs of the customers.

The O&M specialist must get approval in writing from each customer's VR counselor or OIB worker before providing group training.

An O&M specialist:

- must not enroll more than twenty-five (25) customers who are blind and visually impaired in active training; and
- must keep all relevant counselors, OIB workers, and assigned regional program specialist informed by email about the total number of customers in active training.

Active training—Any customer who is receiving an O&M assessment or is enrolled in O&M training is in active training.

2.4.6.2.3 TRAVEL AIDS

The VR counselor or OIB worker purchases one rigid, long white cane with a metal tip and sleep shade (blindfold) for each customer who is approved to receive an O&M training.

The O&M specialist gives each customer information about how to purchase a white cane. Customers are responsible for replacing white canes and cane tips, buying backup white canes, and making similar purchases.

VR or OIB does not reimburse the O&M service provider for any items provided to a customer by the specialist.

The O&M specialist may recommend additional travel aids or other items to the customer's VR counselor or OIB worker, but the decision to purchase additional items rests solely with the VR counselor or OIB worker.

If a customer uses a guide dog, the customer is assessed by the O&M specialist to determine whether the customer also has proficient white cane skills. Once assessed, the customer may attend O&M training with either a white cane or a guide dog.

If customers need further assessment of and direct training for a guide dog, they must contact the school from which they obtained the dog.

2.4.6.3 OUTCOMES REQUIRED FOR PAYMENT

The O&M specialist documents in descriptive terms each customer's monthly training progress and must include:

- the number of training hours provided in each training area;
- a detailed narrative on each skill area addressed during the reporting period and the training location for each lesson;
- a detailed explanation of anticipated training for the upcoming month;
- an explanation of deviations from assessment recommendations, if any; and
- a detailed narrative of cumulative progress, if training is complete.

2.4.7 Orientation and Mobility Service Fee

The following section outlines the approved service fees for O&M services.

O&M Assessment	$75.00 per hour	Limited to three (3) hours per customer
O&M Training– Individualized	$75.00 per hour	• Training sessions must last at least two (2) hours • No more than six (6) hours of training allowed per day Note: For OIB customers, the length

		of the training lesson will be determined by the customer's health, stamina, and ability to participate.
O&M Training–Group	• $75.00 per hour for the first customer • $37.50 per hour for each additional customer	• Limit of three (3) customers per group • Training sessions must last at least two (2) hours • No more than six (6) hours of training allowed per day

2.5 SERVICE AREA

This is a statewide open enrollment solicitation procured through an Open Enrollment. All Texas counties are included in this solicitation. If awarded a contract for these services, the Provider(s) may serve VR Customers throughout the state of Texas upon receipt of an approved service authorization issued on behalf of a VR Customer.

2.6 BACKGROUND CHECKS

VR-SFP Manual Chapter 3: Basic Standards require each Provider to run background checks on each Provider staff member who will interact with any VR Customer. This includes any Provider staff who have any communication or other contact whether in person, on paper, by voice, by sign language, electronically or any other method. The only exception is for Provider staff who never communicate with or are physically present with a VR Customer. Background checks must be completed by the Provider before the Provider

staff interacts with any VR Customer.

Applicants and Providers are responsible for obtaining a background check for all applicable Provider staff. A background check consists of running a name-based search from the Texas Department of Public Safety and checking the National Public Sex Offender public website.

For more information on required background checks refer to the following resources:

- VR-SFP Chapter 3, Section 3.2.18 Background Checks
    - Convictions Barring Contractor Staff from Performing Services for TWC
    - Contracted Service Exempt from Background Checks
    - Exception to Background Check Instructions
    - Background Check FAQ
- Form VR1307 Background Checks Attestation and Release Form found at https://www.twc.texas.gov/programs/vocational-rehabilitation/forms
- Webinar: Background and National Public Sex Offender Requirements

2.7 TRANSPORTATION OF VR CUSTOMERS

Transportation of VR Customers by a Provider (or Provider's staff) is not required. However, if a Provider (or Provider's staff or Provider's subcontractors) do transport a VR Customer in the Provider's vehicle or Provider's staff personal vehicle, they must meet the minimum liability requirements of the Texas Department of Insurance. The Provider must maintain current proof of insurance for any Provider staff who transports VR Customers. When Provider staff transports VR Customers in personal vehicles, the Provider staff must submit to VR proof of auto liability insurance as required by the Texas Department of Insurance with Form VR3455.

Verification statements on Form VR3455 must be signed by the Provider staff represented on the form and the Provider's Director appointed by the legal authorized representative.

2.8 PROVIDER'S DIRECTOR

Each Provider/Entity must have a Director who meets the qualification as stated in the VR-SFP Manual, Chapter 3 Basic Standards. The Provider's/Entity's legally authorized representative must appoint Director(s) using Form VR3441A. The Provider's/Entity's Director must also have a VR 3455 included in the Application. Anytime the VR3455 is completed and/or updated the Provider must keep a copy on file and submit it to VR. For additional information refer to VR-SFP Manual Chapter 3.

2.9 PROVIDER STAFF PROVIDING SERVICES TO VR CUSTOMERS

For any service selected by the Applicant on VR3441B, the Applicant must have **at least one (1) person** who meets the qualifications to provide the service(s) as described in Section 2.4 Requirements.

Each Provider staff must have VR3455 with the supporting documentation (resumes, transcripts, proof of insurance, and credentials) included in the Application.

After contract award, a VR3455 with supporting documentation must be submitted for **each** person who will be providing services under the Contract. Each Provider must submit Form VR3455 and the supporting evidence that the staff member meets the required qualifications within 30 days of:

- hiring new staff member;
- making a significant change to a staff member's job duties such as fundamentally altering the nature of the job, requiring new skills, responsibilities, or a substantial time commitment;

- changing staff qualifications and/or credentials; or
- terminating a staff member.

For additional information refer to the VR-SFP Manual.

ARTICLE III GENERAL INFORMATION

3.1 AUTHORITY

TWC is soliciting the services stated in this Solicitation under the statutory authority of Texas Labor Code §352.060.

All official communication (including, but not limited to, Schedule of Event changes, and Addenda will be posted to the Electronic State Business Daily (ESBD). TWC has no responsibility to communicate personally with each potential Applicant for this OE. Each interested party is solely responsible for checking the ESBD for official TWC communication regarding this OE.

3.2 SCHEDULE OF EVENTS

The dates in this Schedule of Events are tentative, and TWC reserves the right to modify these dates at any time. At the sole discretion of TWC, events listed in the Schedule of Events are subject to changes and cancellation. Scheduling changes or cancellation made prior to the Deadline for Submission of Applications will be published as an Addendum posted to the Electronic State Business Daily (ESBD) and the TWC Procurement Portal.

Applicant is required to sign and return all Addenda related to the Open Enrollment.

Table 2: Schedule of Events

EVENT	DATE and TIME
Open Enrollment Period	**Start Date:** May 28, 2026 **End Date:** November 24, 2026, by 10 a.m. CST **NOTE:** This solicitation may be closed sooner than the published end date if TWC receives sufficient applications to cover all required needs.

Applicant must submit their Application to TWC within the open enrollment period in accordance with Schedule of Events shown above, or as changed via a notification of an Addendum posted to the ESBD.

NOTE: TWC reserves the right to close this solicitation at any time prior to the published deadline. If TWC determines that a sufficient number of applications or awarded contracts exist, this solicitation will be closed.

3.3 CONTRACT DOCUMENTS

The Contract(s) resulting from this solicitation may consist of the provisions in this Open Enrollment (including its attachments, forms, exhibits, and any Addenda); the Provider's Application, any TWC Request for Revised Application, the Provider's Response to the Request for Revised Application, and TWC's Service Authorization (SA). No prior agreement or understanding, oral or otherwise, of the parties or their agents will be valid or enforceable unless embodied in these documents. In the event of a conflict between the provisions of these documents, the documents are given the following order of priority: (1) TWC SA; (2) most recent Request for Revised Application (if any); (3) Provider's Response to the Request for Revised Application; (4) Invitation for Application (OE); and (5) Provider's Application.

TWC may elect to have the Contract(s) resulting from this Open Enrollment consist of a single document. This document will contain all rights and duties of

the parties extracted from the relevant terms and conditions of the Open Enrollment (including its attachments, forms, exhibits, and any Addenda), the Provider's Response, the Request for Revised Response, if any, and Provider's Response to the Request for Revised Response, if any. Prior to award, TWC will prepare the Contract for review by the Provider.

Discussions may be had concerning possible revisions to the draft Contract to clarify points, further define Contract text, or to correct minor technicalities. These discussions are to be finalized and all requests for revisions resolved within ten (10) Business Days after the Provider receives the draft Contract for review or such additional time that may be agreed to by TWC. If discussions are not finalized within such time frame, the Application/Enrollment Packet may be rejected.

3.4 ATTACHMENTS AND FORMS

To ensure efficient and timely processing, please adhere to the following guidelines for form submission:

1. Documentation Placement: All supporting documentation must be collated directly behind its corresponding form.
2. Duplicate Forms: Duplicate forms must not be submitted.
3. Specific Example: For instance, if multiple Form 3455s are submitted, the supporting documentation pertinent to each staff member must be appended directly to their specific Form 3455.

Please be advised that improperly organized applications may be rejected or experience significant processing delays.

Table 3: Attachments and Form

Attachment/Form	Title
Attachment 01	VR OE T&Cs (12/18/25)
Attachment 02	OE Application Submission Checklist
Attachment 03	VR 2894, Orientation and Mobility Assessment
Attachment 04	VR 2896, Orientation and Mobility Training
Attachment 05	VR 2897, Orientation and Mobility Referral
Attachment 06	VR 2922, Orientation and Mobility Weekly Internship Observation
Attachment 07	VR 2923, Orientation and Mobility Internship Performance Evaluation
Attachment 08	VR3472, Contracted Service Modification Request
Form 01	Execution of Application Name convention for submission: APPLICANT Name_Execution of Application
Form 02	W-9 and Direct Deposit Form (VR 1020) • Complete the Form VR1020, TWC Substitute W-9 and Direct Deposit. • Refer to the VR1020 instructions and to TWC Substitute W-9 and Direct Deposit Form video for guidance. • If the TWC1020 shows a "Business Name" (DBA) designation in Box 2, include a copy of County DBA registry letter. • If the TWC1020 uses an "EIN" in box 6, include a copy of IRS letter assigning Employer Identification Number. Name convention for submission: APPLICANT Name_W-9

Form 03	Child Support Certification (VR 1305) • Complete Form VR1305, Child Support Certification. • Refer to the VR1305 instructions for additional guidance. • Provide the name and social security number (SSN) of the individual or sole proprietor, or if not a sole proprietorship, of each partner, shareholder, or owner with an ownership interest of at least 25 percent of the business entity. • If no one person owns 25 percent or more of the business, state "Not Applicable (N/A)" in the Name/SSN field and complete the remaining sections. • Form VR1305 must be signed by the entity's legal authorized representative. Name convention for submission: APPLICANTName_VR1305
Form 04	TWC VR Standards for Provider Certification (VR 3443) • Complete Form VR3443, TWC VR Standards for Provider Certification. • Form VR3443 must be signed by the entity's legally authorized representative. Name convention for submission: APPLICANT Name_VR3443
Form 05	Conflict of Interest Certification (VR 3444) • Complete the Form VR3444, Conflict of Interest Certification. • Form VR3444 must be signed by the entity's legally authorized representative. Name convention for submission: Applicant's Name_VR3444

Form 06	Provider Insurance Verification (VR 3445) • Applicants with or without insurance must complete the form VR3445, Provider Insurance Verification. • When the Applicant has insurance, a current and accurate certificate of insurance from the Association for Cooperative Operations Research and Development (ACORD) or its equivalent must be attached to Form VR3445. Name convention for submission: APPLICANT Name_VR3445
Form 07	Entity Headquarters Information Management Form (VR 3441A) • Complete the Form VR3441A Entity Headquarters Information Management Team to record the Applicant's management team information. Name convention for submission: Applicant's Legal Name_VR3441A
Form 08	Entity Headquarters Information - Services (VR 3441B) • Complete Form VR3441B, Entity Headquarters • Information- Part B-Services form to describe the Applicant's staff experience and to indicate what services the Applicant is applying for to gain a contract. • To be eligible to apply for a service the Applicant must have **at least one** (1) person who meets the qualifications to provide the service at application • Name convention for submission: APPLICANT Name_VR3441B
Form 09	Entity Headquarters Information – Location(s)

	(VR 3441C) • Complete Form VR3441C, Entity Headquarters Information - Location(s) form. • Form VR3441C must be completed by all Applicants to record the counties where the **Applicant is able to provide services with the staff currently hired**. Counties can be added and removed without amending the contract as staff availability changes by completing and submitting a new Form VR3441C to the assigned regional quality assurance specialist. Name convention for submission: APPLICANT Name_VR3441C
Form 10	Entity's Physical Location(s) – Part A – Service Contracts Certification (VR 3442A) • Complete the Form VR3442 A, Entity's Physical Location(s)- Part A- Service Contracts Certification Statement. • Form VR3442A must be completed by the Applicant to indicate if the Applicant has a physical location. The VR3442A form must be submitted even if the Provider does not have a physical location. Name convention for submission: APPLICANT Name_VR3442A
Form 11	Entity's Physical Location(s) – Part B – General Information Service Contracts (VR3442B) • Complete Form VR3442 B - Entity's Physical Location(s)-Part B- General Information Service Contracts when applicable. • Form VR3442B must be completed for **each** physical location the entity has. If the entity does not have any physical locations, the Form VR3442B is not required. Name convention for submission: APPLICANT Name_VR3442B

Form 12	Provider Staff Information Form(s) with Supporting Documentation (VR 3455) • Complete a Form VR3455, Provider Staff Information and attach required supporting documentation (resumes, transcripts, proof of insurance, and credentials) to demonstrate the staff person, including the Director, meets the required qualifications as stated in the VR-SFP Manual. • When a staff person will be transporting VR customers in personal vehicles, the staff person must submit proof of auto liability insurance as required by the Texas Department of Insurance with Form VR3455. • Verification statements on Form VR3455 must be signed by the staff person represented on the form and the Director appointed by the legal authorized representative. Name convention for submission: *APPLICANT Name*_ Staff Legal Last Name_VR3455

3.5 SOLE POINT OF CONTACT

All requests, questions, or other communication about this Open Enrollment must be submitted through the TWC Procurement Portal and will be directed at the Sole Point of Contact below:

Meghan Osborn, CTCD

TWC Procurement Portal

3.5.1 Prohibited Communication

Except as provided in Section 3.5, a potential Applicant and Applicant that has submitted an Application is prohibited from any communication with TWC regarding the Open Enrollment. Unless allowable, TWC, its representative(s),

and partners will not answer any questions or otherwise discuss the contents of this Open Enrollment with any potential Applicant or its representative(s). Attempts to ask questions by phone or in person will not be allowed or recognized as valid. Applicants shall rely only on written statements issued by or through TWC designated staff as provided by the Sole Point of Contact in Section 3.5**.**

Failure to comply with these restrictions may result in disqualification of Applicant's Application. These restrictions do not preclude discussions between affected parties for the purpose of conducting business unrelated to this Open Enrollment.

3.6 ADDENDA

Should an addition or correction become necessary after the Open Enrollment is issued, an Addendum relating the necessary information will be posted to the ESBD. Applicants are responsible for periodically checking the ESBD for addenda or additional information. **Applicants are required to acknowledge the Addenda by returning the signed Acknowledgment of Addenda with the Application/Enrollment Packet. Failure to do so does not absolve an Applicant from the requirements contained within any Addenda.**

ARTICLE IV APPLICATION PROCESS

4.1 DEADLINE

Applications must be received by TWC as prescribed no later than date and time specified in Section 3.2 Schedule of Events.

4.2 GENERAL INFORMATION

Applicants must fully and completely address all requirements described in

this Open Enrollment. Incomplete or partial Applications will not be considered. Applicants must provide all information that is required in accordance with Section 4.5. Applicants shall prepare an Application that clearly and concisely represents its qualifications.

4.3 DISCREPANCIES

In the event of any discrepancies or variations between copies, TWC is under no obligation to resolve the inconsistencies and may make its selection decision, accordingly, including the decision to potentially disqualify an Application. If Applicant fails to designate an "Original" Application as required by Section 4.4. TWC in its sole discretion, will determine the version to be used as the original or may disqualify the Application. If the Applicant submits a redacted Application as the "Original," TWC will disqualify the Application, and it will not be reviewed.

4.4 SUBMISSION METHOD

TWC has implemented the eProcurement platform referred to as the TWC Procurement Portal. Applicants must upload all documentation indicated to the TWC Procurement Portal link on the "Open Opportunities" tab.

Submissions by any other method **will not** be accepted.

To respond to this Open Enrollment, Applicants must register through the TWC Procurement Portal website. There is no charge to register.

Step-by-step instructions are available at: Vendor Registration – Procurement.

For step-by-step instructions about the submission process, visit: Creating and Uploading a Submission – Procurement

Any issues with uploading must first be addressed with the TWC Procurement Portal Technical Support at the contact information included in the

Procurement Information Summary and TWC Procurement Portal Instructions to Applicants document.

Applicants must contact the Sole Point of Contact prior to the deadline if there are issues with using the TWC Procurement Portal and an alternative submission method may be required. Failure to contact the Sole Point of Contact well before the deadline to make alternative arrangements will disqualify any subsequent Application submission.

In no event will TWC be responsible or liable for any delay or error in delivery. TWC is not responsible for electronic submissions that are captured, blocked, filtered, quarantined or otherwise prevented from reaching the proper destination server by any TWC anti-virus or other security software.

It is the Applicant's responsibility to appropriately mark and upload the Application to the TWC Procurement Portal by the specified date. Each Applicant is solely responsible for ensuring its Application is submitted in accordance with all Application requirements and ensuring timely receipt by TWC.

Hard copies received will not be accepted or reviewed.

Application must be RECEIVED by TWC by the Application Deadline identified in Section 3.2 Schedule of Events.

4.5 REQUIRED APPLICATION DOCUMENTS

The Completed Enrollment Packets may be submitted at any time during the enrollment period. All forms listed below must be completed in their entirety and uploaded to your Application **as a separate document in Portable Document Format (PDF)**. **Do not submit encrypted or password protected materials or TWC may eliminate such Applications from consideration for contract award.** *The Application will be rejected if the Applicant does not submit each form as a separate document with required*

signatures and date, as applicable. All content added to forms must be typed and cannot be handwritten. Signatures can be either handwritten or electronic and not editable. A valid electronic signature must include a date and time stamp or be accompanied by a certificate (technical log or report) that documents the signing event with the signer's information, date, and time.

For qualified Applicants that submit complete applications, Contracts will be developed as they are approved. The volume of applications may vary during the enrollment period, and Contracts may take three (3) months or more to be finalized, depending upon volume and workload.

4.5.1 Modifications and Withdrawals

Prior to the Application submission deadline in **Section 3.2 Schedule of Events**, Applicant may: (1) withdraw its Application by deleting the Application in the TWC Procurement Portal; or (2) modify its Application via the TWC Procurement Portal. When amending its Application, Applicant must follow the instructions provided by the TWC Procurement Portal, revising the section(s) intended, submit and finalize.

Note: TWC will reject the Enrollment Packet if its documents are not submitted in the PDF format and name convention as described in this notice and/or if the forms are submitted as encrypted or password protected.

4.6 BINDING OFFER

Applications shall be binding for a period of one hundred eighty (180) days after the Application due date. An Applicant may extend the time for which its Application will be honored.

4.7 FRANCHISE TAX – RIGHT TO TRANSACT BUSINESS IN TEXAS

If applicable, the Texas franchise tax is imposed on each taxable entity formed or organized in Texas or doing business in Texas.

Applicant must be set up in the Texas franchise tax system prior to Contract award if applicable. Texas franchise tax information can be accessed at https://comptroller.texas.gov/taxes/franchise/.

4.8 AMBIGUITY, CONFLICT, OR DISCREPANCY

Applicants must notify the Sole Point of Contact listed in Section 3.5 of any ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error in the Open Enrollment.
If Applicant fails to properly and timely notify the Sole Point of Contact listed in Section 3.5, of any ambiguity, conflict, discrepancy, exclusionary specification, omission or other error in the Open Enrollment, whether awarded a Contract or not, the Applicant:

a. Waives any claim of error or ambiguity in the Open Enrollment and any resulting Contract;

b. Submits an Application at its own risk;

c. May not contest the interpretation by TWC of such provision(s); and

d. Is not entitled to additional compensation, relief, or time by reason of ambiguity, conflict, discrepancy, exclusionary specification, omission, or other error or its later correction.

4.9 TWC RIGHTS

All materials submitted by an Applicant will become the property of TWC. TWC reserves the right to use any and all ideas presented in any Application to this Open Enrollment. Selection or rejection of any Application does not affect this

right.

The rights of TWC include, but are not limited to:

a. Cancellation of this Open Enrollment at TWC's sole discretion;
b. Suspension of the procurement process and issuance of Open Enrollment Addenda;
c. Rejection, in whole or in part, of any and all Applications received for this Open Enrollment;
d. Waiver of administrative deficiencies or minor technicalities in any of the Applications;
e. Utilization of any and all ideas presented in the Applications;
f. Directing any Applicant to submit Application modifications addressing subsequent Addenda;
g. Elimination of any requirements that are not met by all Applicants upon notice to all parties submitting an Application;
h. Making typographical corrections to Applications, with the concurrence of the Applicant;
i. Changing computational errors with the concurrence of the Applicant;
j. Requesting Applicants to clarify the Applications;
k. Requesting Applicants to submit additional information pertaining to the Application; and
l. Awarding a Contract without:
    1. Requesting clarification;
    2. Allowing modification;
    3. Discussing;
    4. Negotiating; and/or
    5. Requesting a revised Application/Enrollment Packet.

ARTICLE V APPLICATION EVALUATION

5.1 APPLICATION SCREENING

a. TWC will review Applications for initial compliance with the Submission requirements in Article IV.
b. TWC will automatically disqualify any Application that does not include one of more of the completed and signed (as applicable) documents.
c. Applications received after the deadline specified in **Section 3.2 Schedule of Events** will be rejected and will not be evaluated or considered for acceptance. TWC is not responsible for Open Enrollment applications that are submitted or received late, illegible, incomplete, or otherwise disqualified due to failure of electronic equipment or operator error.
d. In accordance with Texas Government Code § 2262.055(d), TWC will consider Applicant performance as recorded in the CPA Texas Vendor Performance Tracking System (VPTS), described in Texas Administrative Code, 34 TAC § 20.115.
e. TWC reserves the right to ask questions or request clarification from any Applicant at any time during the screening process.

5.2 REVIEW OF APPLICATIONS

a. TWC will determine whether the Applicant meets all requirements of this Open Enrollment. To be considered responsive, the Applicant must complete and submit **all required forms in accordance with Section 3.4 Attachments and Forms.**
b. Disqualification of an application can occur when an Applicant fails to:
    1. submit an application in accordance with the requirements of the

solicitation; or

2. submit requested corrections or additional documentation within fourteen (14) days unless another timeframe is specified by TWC.
3. Disqualifications for conflicts of interest may occur if:
    - The applicant is employed full-time with another employer;
    - The applicant is employed by a school district as either full- or part-time and is in a position to refer customers to the applicant.

    TWC reserves the right to ask questions to determine if a conflict of interest may arise.

5.3 PUBLIC INFORMATION ACT

Information, documentation, and other materials submitted in connection with this Solicitation or resulting Contract may be subject to public disclosure pursuant to the Texas Public Information Act, Texas Government Code, Chapter 552. See **Attachment 1 Vendor OE T&Cs (12/18/25)**.

TWC may, in its sole discretion (1), disqualify all Applicants that fail to fully comply with the requirements set forth in this section, or (2) offer all Applicants that fail to fully comply with the requirements set forth in this section additional time to comply. Submitting partial or incomplete information that suggests inclusion of confidential information constitutes failure to comply with the requirements set forth in this section.

5.3.1 Applicant Response

If Applicant asserts that information provided in its Application is exempt from disclosure under the Texas Public Information Act, Applicant must mark and submit two separate, searchable Portable Document Format (PDF)

copies (Original Application and "Public Information Act Copy," including attachments, of the Original Application) as identified below. **This copy is in addition to the original and all copies otherwise required under the provisions of this Solicitation**.

a. Mark Original Proposal:

1. Mark the top of the front page with the words "CONTAINS CONFIDENTIAL INFORMATION" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Mark the bottom of each page that contains information that Applicant claims are exempt from public disclosure with the words "CONTAINS CONFIDENTIAL INFORMATION";
3. Identify, adjacent to each portion of the Response that Applicant claims are exempt from public disclosure, the claimed exemption from disclosure. Vague and general claims to confidentiality will not be acceptable.

NOTE*:* No redactions are to be made in the Original Response.

b. **Mark Public Information Act Copy of Response:**

1. Mark the copy at the top of the front page with "Public Information Act Copy" in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger);
2. Each portion Applicant claims are exempt from public disclosure must be redacted (blacked out); and
3. Identify, adjacent to each redaction, the claimed exemption from disclosure. Each identification provided as required by this subsection (b) must be identical to the redactions identified in subsection (a)(3), above. The only difference in required markings and information between the Original Application and the "Public Information Act

Copy" of the Application will be redactions, which can only be made in the "Public Information Act Copy." There must be no redactions in the Original Application.

Applicant should not submit a Public Information Act Copy indicating that the entire Application is exempt from disclosure. Merely making a blanket claim that the entire Application is protected from disclosure because it contains any amount of confidential, proprietary, trade secret, or privileged information is not acceptable, and this blanket claim will not be considered by TWC.

An Application should not be marked or asserted as copyrighted material. If Applicant asserts a copyright to any portion of its Application, Applicant agrees to reproduction and posting on public websites by the State of Texas, including all other state agencies, without cost or liability and, additionally, agrees to allow the State of Texas to provide a copy of the Application to individuals making a Public Information Act request for the Application.

5.3.2 Contract

Within five (5) Business Days from Contract execution, if the Provider is asserting that certain information in the application is exempt from public disclosure, the Provider must submit a "Public Information Act Copy" of the Original Executed Contract (in addition to the Original Executed Contract) to the TWC Contract Manager by email. The Public Information Act Copy must meet the following requirements:

a. The copy must be clearly marked as "Public Information Act Copy" on the front page in large, bold, capitalized letters (the size of, or equivalent to, 12-point Verdana font or larger).

b. Each portion Provider claims is exempt from public disclosure must be redacted (blacked out); and

c. Provider must identify, adjacent to each redaction, the claimed

exemption from disclosure. Each identification provided as required in Subsection b of this section must be identical to those set forth in the Original Application**.** The only difference in required markings and information between the Original Contract and the "Public Information Act Copy" of the contract will be redactions, which can only be included in the "Public Information Act Copy." There must be no redactions in the Original Executed Contract.

ARTICLE VI TERMS AND CONDITIONS

The Terms and Conditions identified in the Solicitation and **Attachment 1 Vendor OE T&Cs (12/18/25)** are applicable to this Solicitation and any Contract resulting from this Solicitation. TWC reserves the right to incorporate additional provisions in the Contract in the best interest of TWC. In the event of a conflict between this Solicitation and applicable laws and regulations, precedence shall be given to the laws and regulations.

6.1 CONTRACT AWARD

TWC intends to award Contract(s) to qualified Applicants throughout the enrollment period and may award multiple Contracts within individual counties or groups of counties.

Entities, Applicants, and/or individuals that are debarred or excluded by the federal government are excluded from receiving federal contracts or certain subcontracts, and certain types of financial and nonfinancial assistance and benefits. Entities, Applicants and/or individuals that are debarred or excluded by the State of Texas are excluded from doing business with the state.

TWC may consider past performance, or any other factor it deems to be in the best interest of TWC or the State of Texas, when determining whether to

award a contract to an Applicant.

Participation in a post-award orientation will be required before any services related to the awarded Contract can be performed.

6.2 CONTRACT TERM

The Contract Term will commence on the fully executed Contract date and expire five (5) years from date of contract execution. TWC reserves the right to cancel for convenience in the event that the Contract has had no expenditures in a twelve-month period during the Contract Term.

The Contract is contingent upon the continued availability of funding. If funds become unavailable through lack of appropriations, legislative budget cuts, amendment of the General Appropriations Act, TWC consolidation of offices, or any other disruption of current appropriations, Termination provisions of **Attachment 1 VR OE T&Cs (12/18/25)** shall apply.

6.3 PAYMENTS

Provider(s) must comply with the **Attachment 2 SOW**, VR-SFP Chapter 3: Basic Standards, and any other applicable sections of the VR-SFP Manual.

Payments made to Provider(s) will be based on the Fee Schedule shown in **Attachment 2 SOW** when all requirements have been achieved.

6.4 CONTRACT AMENDMENTS

The Contract may be amended only by written agreement signed by both the Provider and TWC.

6.5 NO GUARANTEE OF VOLUME, USAGE OR COMPENSATION

TWC makes no guarantee of volume, usage, or total compensation to be

paid to an Applicant under an awarded Contract, if any, resulting from this Solicitation.

TWC reserves the right to cancel or decline to award a Contract under this Solicitation at any time at its sole discretion.

6.6 GOVERNMENTAL ENTITIES

If Applicant is responding to this Solicitation in its capacity as a governmental entity, certain Terms and Conditions found in this Solicitation, including exhibits and attachments, may not be applicable. Furthermore, to the extent permitted by law, if an Application is received from a governmental entity, TWC reserves the right to enter into an interagency or interlocal agreement with the governmental entity.

6.7 COSTS INCURRED

Applicant understands that issuance of this Solicitation in no way constitutes a commitment by TWC to award a Contract. Additionally, TWC is not liable for any costs incurred by an Applicant in the preparation of an Application to this Solicitation. Costs of developing Applications, preparing for, or participating in Oral Presentations and Site Visits, or any other similar expenses incurred by an Applicant are entirely the responsibility of the Applicant, and will not be reimbursed in any manner by the State of Texas.

6.8 APPLICANT WAIVER-INTELLECTUAL PROPERTY

SUBMISSION OF ANY DOCUMENT TO TWC IN RESPONSE TO THIS SOLICITATION CONSTITUTES AN IRREVOCABLE WAIVER AND AGREEMENT BY APPLICANT TO FULLY INDEMNIFY THE STATE OF TEXAS AND TWC FROM ANY CLAIM OF INFRINGEMENT AGAINST THE STATE OF TEXAS AND TWC REGARDING THE INTELLECTUAL PROPERTY RIGHTS OF APPLICANT OR ANY THIRD PARTY FOR ANY

MATERIALS SUBMITTED TO TWC BY APPLICANT.

6.9 REQUIRED INSURANCE

Providers are responsible for their actions and the actions of their employees and subcontractors. Insurance can provide protection to Providers from claims of negligence made by VR Customers.

Providers must maintain insurance as described in VR-SFP Chapter 3 when insurance requirements are applicable. Insurance requirements are subject to change after proposed changes have been posted at least 30 days on the Vocational Rehabilitation Providers' Resources page.

6.10 FAILURE TO PERFORM

If the Provider fails to perform in accordance with the provisions of the contract, TWC may upon written notice to the Provider, take adverse action against the Provider, up to and including terminating the Contract in whole or in part. If notice of termination is given, all work by the Provider shall cease on the effective date of the termination, and TWC will not pay for work performed on or after the effective date of termination. Such termination shall not be an exclusive remedy to TWC but shall be in addition to any other rights and remedies provided by law or under the contract. Adverse action, including termination, may result from, but is not limited to:

1. Violation of the terms of the Contract, including but not limited to, failure to perform any portion of the Contract;
2. Any evidence of abuse, neglect, or exploitation of TWC VR customers receiving services from the Provider as substantiated by an investigation conducted by the Provider, an external regulatory or law enforcement agency, or TWC;
3. Any information giving TWC reason to believe that the health or safety of

TWC VR customers is compromised;

4. Any change in ownership or change in control that TWC believes would adversely affect the delivery of services;
    a. Bringing any individual who is debarred by TWC into the Contract in any financial or legal way (such unacceptable arrangements to include, without limitation, any employment, consulting, contracting, subcontracting, partnership, sale, merger, successor, association or joint venture with a debarred individual);
5. Any real or apparent conflict of interest giving TWC reason to believe that continuation of the Contract is not in the best interest of TWC, the state, or TWC VR customers; or
6. Any violation of state or federal law.

6.11 REMEDIES

The Provider and any of its subcontractors associated with the Contract will remedy in a timely manner any weaknesses, deficiencies, or program noncompliance found as a result of a review, audit or investigation, and any performance or fiscal exceptions found by TWC, the SAO, the federal funding agency, their successor agencies, or any of their duly authorized representatives. TWC may withhold or recoup payments due or paid under the contract, in whole or in part, in the event of the Vendor's noncompliance with any term or provision of the contract, any federal or state law or regulation, or any TWC rules or standards, including, but not limited to, the requirements specifically stated in the contract, relating to the Vendor's performance under the contract, as pursuant to Title 40 TAC § 858.9 or any other appropriate remedies deemed necessary by TWC.

6.12 CHANGE OF OWNERSHIP OR FINANCIAL CONDITION

During the term of the Contract or any extension or renewal thereof, the Provider shall notify TWC in writing of any substantial change in the ownership or control of the Provider as soon as possible, but no later than thirty (30) days prior to its occurrence. Provider must also notify TWC in writing of any change in financial condition as soon as possible, but no later than ten (10) days after its occurrence.

The failure to notify TWC of a change of ownership or control or change in financial condition will be sufficient grounds for rejecting the Application or terminating the Contract. For the purposes of this section, examples of a substantial change in financial condition are events such as insolvency, bankruptcy, or receivership.

6.13 SEVERABILITY

If any provision or portion of this Solicitation is illegal, void, or unenforceable, the other provisions will not be affected.

<End of Solicitation>